

under a settlement beneficially entitled to possession of settled land for his life" (c); and "if there are two or more persons so entitled as tenants in common, or as joint tenants, or for other concurrent estates or interests, they together constitute the tenant for life for the purposes of the Act"; and a person who is "tenant for life within the foregoing definition is to be deemed such, notwithstanding that, under the settlement or otherwise, the settled land, or his estate or interest therein, is incumbered or charged in any manner or to any extent"; and, by sub-sect. (10), possession includes receipt of income.

6. Persons having powers of tenant for life. — By sect. 58, sub-sect. (1), the powers of a tenant for life are given to each of the following persons, when his estate or interest is in possession, namely —

(1). A tenant in tail, including a tenant in tail who is by Act of Parliament restrained from barring or defeating his estate tail, and although the reversion is in the Crown, and so that the exercise by him of his powers shall bind the Crown, but not including such a tenant in tail where the land in respect whereof he is so restrained was purchased with money provided by Parliament in consideration of public services.

(2). A tenant in fee simple, with an executory limitation, gift, or disposition over, on failure of his issue, or in any other event.

(3). A person entitled to a base fee, although the reversion is in the Crown, and so that the exercise by him of his powers shall bind the Crown.

(4). A tenant for years determinable on life, not holding merely under a lease at a rent.

[*554] *(5). A tenant for the life of another, not holding merely under a lease at a rent.

(6). A tenant for his own or any other life, or for years determinable on life, whose estate is liable to cease in any event during that life, whether by expiration of the estate,

(c) By sect. 8 of the Settled Land Act, 1884, the estate of a tenant by the curtesy is, for the purposes of the Act of 1882, to be deemed an estate arising under a settlement made by his wife.